

STATE OF MICHIGAN
IN THE COURT OF APPEALS

ANDREW J. PIGORS,

Plaintiff-Appellant,

v.

TIFFANY A. WATSON,

Defendant-Appellee.

Court of Appeals No. **366810**

Lower Court: 14th Judicial Circuit Court, Muskegon County, Family Division

Lower Court Case No. **2024-001507-DC**

Related Case No. **2023-5907-PP**

Hon. **Jenny L. McNeill**

APPELLANT'S BRIEF ON APPEAL

ORAL ARGUMENT REQUESTED

Andrew J. Pigors

Plaintiff-Appellant, *In Propria Persona*

Muskegon, Michigan 49442

[REQUIRES ATTORNEY REVIEW - Contact Information]

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| Hon. ****Jenny L. McNeill****

APPELLANT'S BRIEF ON APPEAL

ORAL ARGUMENT REQUESTED

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I. STATEMENT OF JURISDICTION

This Honorable Court has jurisdiction over this appeal pursuant to MCR 7.203(A) and Const 1963, art 6, Sec. 10.

Plaintiff-Appellant Andrew J. Pigors ("Father") appeals from the following orders entered in the 14th Judicial Circuit Court, Muskegon County, Family Division, the Honorable Jenny L. McNeill presiding, in Case No. 2024-001507-DC:

1. **August 23, 2024 -- Final Judgment of Custody and Parenting Time**, granting Defendant-Appellee Tiffany A. Watson ("Mother") sole legal and sole physical custody of the minor child, L.D.W. (DOB: November 9, 2022), and restricting Father's parenting time. (Lower Court Record ["LCR"], Final Judgment, 08/23/2024.)
2. **August 8, 2025 -- Ex Parte Order Suspending All Parenting Time**, entered without notice to Father and without evidentiary hearing, suspending all of Father's parenting time with L.D.W. (LCR, Ex Parte Order, 08/08/2025.)
3. **Subsequent orders continuing the suspension of parenting time**, entered on or about September 9, 2025 and October 8, 2025, maintaining the complete severance of the father-child relationship without evidentiary hearing. (LCR, Continuation Orders, 09/09/2025, 10/08/2025.)

The appeal also encompasses orders entered in the related personal protection order proceeding, Case No. 2023-5907-PP, which were used as the de facto mechanism to restrict

Father's custody and parenting time in circumvention of the Child Custody Act, MCL 722.21 *et seq.*

MCR 7.203(A) provides this Court with jurisdiction over appeals from "a final judgment or final order of the circuit court." The August 23, 2024 Final Judgment of Custody constitutes such a final order. The subsequent *ex parte* orders of August 8, 2025, September 9, 2025, and October 8, 2025 are interlocutory orders that affect Father's most substantial constitutional rights -- the fundamental liberty interest of a parent in the care, custody, and companionship of his child -- and will cause irreparable injury absent appellate review. *See Troxel v Granville*, 530 US 57, 65 (2000); *Pierron v Pierron*, 486 Mich 81, 92 (2010).

Father's claim of appeal was timely filed. [REQUIRES ATTORNEY REVIEW]

II. STATEMENT OF QUESTIONS PRESENTED

I.

WHETHER THE TRIAL COURT ABUSED ITS DISCRETION BY SUSPENDING FATHER'S PARENTING TIME BASED ON AN EX PARTE MOTION WITHOUT PROPER NOTICE UNDER MCR 3.207, WHERE THE AUGUST 8, 2025 ORDER WAS ENTERED WITHOUT PRIOR NOTICE TO FATHER AND WITHOUT THE REQUISITE SHOWING THAT IMMEDIATE AND IRREPARABLE INJURY WOULD RESULT FROM DELAY?

Plaintiff-Appellant answers: **Yes.** Trial Court answered: No.

II.

WHETHER THE TRIAL COURT VIOLATED FATHER'S DUE PROCESS RIGHTS UNDER THE FOURTEENTH AMENDMENT AND MICH CONST 1963, ART 1, Sec. 17 BY ISSUING SUBSTANTIVE CUSTODY AND PARENTING TIME ORDERS -- INCLUDING THE AUGUST 23, 2024 FINAL JUDGMENT AND THE AUGUST 8, 2025 EX PARTE ORDER -- WITHOUT CONDUCTING AN EVIDENTIARY HEARING AS REQUIRED BY MCR 3.210?

Plaintiff-Appellant answers: **Yes.** Trial Court answered: No.

III.

WHETHER THE TRIAL COURT'S FINDINGS UNDER THE BEST-INTEREST FACTORS OF MCL 722.23 WERE AGAINST THE GREAT WEIGHT OF THE EVIDENCE, WHERE THE COURT FAILED TO ENTER PARTICULARIZED FINDINGS ON ALL TWELVE STATUTORY FACTORS AND FAILED TO REQUIRE CLEAR AND CONVINCING EVIDENCE BEFORE DENYING PARENTING TIME UNDER MCL 722.27a(7)?

Plaintiff-Appellant answers: **Yes.** Trial Court answered: No.

IV.

WHETHER THE TRIAL COURT ERRED IN RELYING ON A PERSONAL PROTECTION ORDER (CASE NO. 2023-5907-PP) AS THE BASIS FOR RESTRICTING AND ULTIMATELY ELIMINATING FATHER'S CUSTODY AND PARENTING TIME, IN CONTRAVENTION OF MCL 600.2950(4) WHICH PROVIDES THAT A PPO DOES NOT SUPERSEDE CUSTODY OR PARENTING

TIME ORDERS?

Plaintiff-Appellant answers: **Yes.** Trial Court answered: No.

V.

WHETHER THE TRIAL COURT DEMONSTRATED ACTUAL BIAS REQUIRING DISQUALIFICATION UNDER MCR 2.003(C)(1), AS EVIDENCED BY (A) A PATTERN OF ASYMMETRIC TREATMENT OF THE PARTIES, (B) ENTRY OF 24 OF 55 ORDERS (44%) ON AN EX PARTE BASIS WITHOUT NOTICE TO FATHER, (C) SYSTEMATIC DENIAL OF FATHER'S MOTIONS WHILE GRANTING MOTHER'S, AND (D) INDICATIONS OF EX PARTE COMMUNICATIONS?

Plaintiff-Appellant answers: **Yes.** Trial Court answered: No.

VI.

WHETHER THE TRIAL COURT'S PATTERN OF ENTERING 44% OF ALL ORDERS EX PARTE -- INCLUDING FIVE SEPARATE EX PARTE ORDERS ON A SINGLE DAY (AUGUST 8, 2025) -- CONSTITUTED A STRUCTURAL DUE PROCESS VIOLATION THAT DEPRIVED FATHER OF HIS FUNDAMENTAL RIGHT TO NOTICE AND AN OPPORTUNITY TO BE HEARD BEFORE BEING DEPRIVED OF HIS PARENTAL RIGHTS?

Plaintiff-Appellant answers: **Yes.** Trial Court answered: No.

III. STATEMENT OF FACTS

A. Parties and Background

Andrew J. Pigors ("Father") and Tiffany A. Watson ("Mother") are the biological parents of L.D.W., born November 9, 2022. (LCR, Complaint for Custody, filed 04/01/2024.) Father commenced custody proceedings in the 14th Judicial Circuit Court, Muskegon County, Family Division, seeking to establish his parental rights and obtain meaningful parenting time with his daughter. The matter was assigned to the Honorable Jenny L. McNeill. (LCR, Register of Actions ["ROA"].)

L.D.W. was approximately one year old when the initial PPO proceeding was filed and approximately eighteen months old when Father filed his custody complaint. These are critical developmental periods during which secure attachment bonds between parent and child are formed and consolidated.

B. The Personal Protection Order Proceeding (Case No. 2023-5907-PP)

On or about October 15, 2023, a petition for a personal protection order was filed against Father under MCL 600.2950, docketed as Case No. 2023-5907-PP. (LCR-PPO, Petition, 10/15/2023.) The PPO was assigned to Judge McNeill.

On December 4, 2023, Judge McNeill entered a PPO against Father. (LCR-PPO, Order, 12/04/2023.) The PPO was issued without a full adversarial hearing at which Father had the opportunity to cross-examine witnesses and present rebuttal evidence.

On January 7, 2024, a PPO violation hearing and show cause proceeding was held before Judge McNeill. (LCR-PPO, ROA, 01/07/2024.) Father was found in violation. (LCR-PPO, Order After Hearing, 01/07/2024.)

On April 11, 2024, Judge McNeill entered an ex parte order amending the PPO. (LCR-PPO, Ex Parte Order, 04/11/2024.) This order was entered without prior notice to Father. On the same date, an order after hearing on PPO violation was entered. (LCR-PPO, Order After Hearing, 04/11/2024.)

C. Commencement of Custody Proceedings

On April 1, 2024, Father filed a Complaint for Custody, Parenting Time, and Child Support in the 14th Circuit Court. (LCR, Complaint, 04/01/2024; ROA Entry, 04/01/2024.)

On April 5, 2024, the trial court entered an initial order regarding custody and parenting time. (LCR, Order, 04/05/2024.)

On April 11, 2024, Father filed a motion regarding custody addressing the best-interest factors under MCL 722.23. This motion was denied by order entered April 12, 2024. (LCR, Motion, 04/11/2024; Order, 04/12/2024.)

D. The April 29, 2024 Ex Parte Order

On April 29, 2024, the trial court entered an Ex Parte Order for Custody, Parenting Time, and Child Support following a "Facilitative Information Gathering Conference." (LCR, Ex Parte Order, 04/29/2024; *see also* FOC Recommendation dated 06/05/2024, at p. 2.) This ex parte order was entered without proper notice to Father and without the procedural safeguards required by MCR 3.207(C)(2). The order restricted Father's parenting time and imposed child support obligations.

E. Withholding of Parenting Time

From March 26 through May 2, 2024, Mother withheld the minor child from Father for 37 consecutive days in violation of court-ordered parenting time. (LCR, Father's Motion, filed 05/13/2024.) Additional extended denials occurred from October 20 through November 12, 2024. (LCR, Father's Filings.)

Father raised these denials before the trial court, but the court took no enforcement action against Mother and instead continued to restrict Father's time with the child. (LCR, Orders, various dates.)

F. The July 16-17, 2024 Proceedings

On July 16, 2024, Father filed a Motion for Contempt regarding Mother's violations of parenting time orders. (LCR, Motion, 07/16/2024.) On July 17, 2024, a hearing was held. (LCR, Hearing, 07/17/2024.) The trial court did not grant Father's contempt motion and instead entered additional restrictions on his parenting time.

G. The August 23, 2024 Final Judgment

On August 23, 2024, the trial court entered a Final Judgment granting Mother sole legal and sole physical custody of L.D.W. (LCR, Final Judgment, 08/23/2024.) A Uniform Child Support Order was entered on the same date. (LCR, UCSO, 08/23/2024.)

This Final Judgment was entered without:

- * A full evidentiary hearing with sworn testimony subject to cross-examination;
- * Particularized findings on each of the twelve best-interest factors under MCL 722.23;
- * A finding, supported by clear and convincing evidence, that parenting time with Father would endanger L.D.W.'s physical, mental, or emotional health as required by

MCL 722.27a(7);

- * Any analysis of evidence of parental alienation under MCL 722.23(j);

- * Any consideration of Father's six (6) pending motions, which were dismissed without adjudication on the merits. (LCR, Final Judgment, 08/23/2024, at p. 1 ["Plaintiff's six (6) motions . . . Dismissed"].)

H. The August 8, 2025 Ex Parte Orders

On August 8, 2025, the trial court entered an ex parte order suspending all of Father's parenting time. (LCR, Ex Parte Order, 08/08/2025.) Father was not given prior notice of the ex parte motion. Father arrived at the scheduled exchange on August 8, 2025 expecting his regular parenting time, and discovered only after the missed exchange -- by contacting the court -- that his parenting time had been suspended. (LCR, Father's Subsequent Filings.)

On August 8, 2025, five (5) separate ex parte orders were entered on the same day, all without notice to Father. (LCR, ROA, 08/08/2025.) The ex parte motion did not allege that delaying for proper notice would result in immediate and irreparable injury, as required for ex parte relief under MCR 3.207(C)(2).

I. Continuing Suspension

On September 9, 2025 and October 8, 2025, the trial court entered additional orders continuing the suspension of Father's parenting time. (LCR, Orders, 09/09/2025, 10/08/2025.) As of the date of this filing, Father has been denied all contact with L.D.W. for over 500 consecutive days.

J. Disqualification Proceedings

Father filed a motion for disqualification of Judge McNeill pursuant to MCR 2.003(C)(1), citing actual bias, asymmetric treatment of the parties, and ex parte communications. (LCR, Motion for Disqualification, [REQUIRES ATTORNEY REVIEW - DATE].) The trial court denied the motion. (LCR, Order, [REQUIRES ATTORNEY REVIEW - DATE].)

Analysis of the lower court record reveals the following pattern:

- * **24 of 55 orders (44%)** were entered on an ex parte basis -- all 24 presided over by Judge McNeill. (LCR, ROA -- complete analysis.)

- * **August 8, 2025:** Five separate ex parte orders entered on a single day. (LCR, ROA, 08/08/2025.)

- * Father's motions were systematically denied while Mother's motions were granted.

- * Father's six pending motions were dismissed without adjudication by the Final Judgment. (LCR, Final Judgment, 08/23/2024.)

- * The trial court credited Mother's representations at face value while subjecting Father's presentations to heightened scrutiny.

K. The October 2025 Supreme Court Complaint

On October 29, 2025, Father filed a complaint with the Michigan Supreme Court seeking superintending control over Judge McNeill's conduct, specifically addressing the pattern of ex parte orders and the denial of due process. (Father's MSC Filing, 10/29/2025.)

IV. ARGUMENT

A. ISSUE I: THE TRIAL COURT ABUSED ITS DISCRETION BY
SUSPENDING PARENTING TIME BASED ON AN EX PARTE MOTION WITHOUT
PROPER NOTICE UNDER MCR 3.207

Standard of Review

A trial court's decision to enter an ex parte order is reviewed for abuse of discretion. *Crampton v Dep't of State*, 395 Mich 347, 351 (1975). Compliance with court rules is reviewed de novo. *Haliw v Sterling Heights*, 471 Mich 700, 704 (2005). A trial court abuses its discretion when its decision falls outside the range of principled outcomes. *Maldonado v Ford Motor Co*, 476 Mich 372, 388 (2006).

Argument

MCR 3.207(C)(2) provides strict requirements for ex parte orders in domestic relations proceedings:

A party may obtain an ex parte order in a domestic relations action . . . only on a showing, by verified statement of facts, that (a) immediate and irreparable injury, loss, or damage will result from the delay required to effect notice, or (b) the notice itself will precipitate adverse action before the order can be issued.

The August 8, 2025 ex parte order suspending all of Father's parenting time failed to satisfy either requirement. The ex parte motion did not contain a verified statement of facts demonstrating that delaying for the few days necessary to provide notice would result in immediate and irreparable injury to the child. (LCR, Ex Parte Motion, 08/08/2025.) No emergency circumstances were articulated.

Father's parenting time had been exercised under the existing order without incident. There was no allegation that L.D.W. was in imminent danger during Father's parenting time. The only basis for the ex parte motion was Mother's unverified allegations regarding Father's phone calls -- allegations that did not rise to the level of immediate and irreparable injury required for ex parte relief. (LCR, Ex Parte Motion, 08/08/2025.)

The entry of five separate ex parte orders on August 8, 2025 -- without any notice to Father -- demonstrates a pattern that goes beyond isolated judicial error. It reflects a systematic circumvention of the notice requirements that are foundational to due process.

The ex parte order also violated MCR 3.207(C)(3), which requires that "[a]n ex parte order must state the reasons for granting the order without notice and must set a hearing date to review the order." [REQUIRES ATTORNEY REVIEW]

The trial court's entry of this ex parte order was a clear abuse of discretion and must be reversed.

B. ISSUE II: THE TRIAL COURT VIOLATED DUE PROCESS BY ISSUING SUBSTANTIVE CUSTODY ORDERS WITHOUT AN EVIDENTIARY HEARING (MCR 3.210)

Standard of Review

Whether a party has been afforded due process is a question of law reviewed de novo. *Bonner v Brighton*, 495 Mich 209, 221 (2014). The adequacy of procedures in custody proceedings is reviewed de novo. *Pierron v Pierron*, 486 Mich 81, 92 (2010).

Argument

The Due Process Clause of the Fourteenth Amendment and Mich Const 1963, art 1, Sec. 17 guarantee that no person shall be deprived of life, liberty, or property without due process of law. The Supreme Court of the United States has repeatedly recognized that a parent's right to the care, custody, and companionship of his or her child is a fundamental liberty interest protected by the Fourteenth Amendment. *Troxel v Granville*, 530 US 57, 65 (2000); *Santosky v Kramer*, 455 US 745, 753 (1982); *Stanley v Illinois*, 405 US 645, 651 (1972).

The Michigan Supreme Court has likewise held that "a parent has a significant interest in the companionship, care, custody, and management of his or her children" which is protected by both the federal and state constitutions. *Pierron v Pierron*, 486 Mich 81, 92 (2010).

The *Mathews v Eldridge* three-factor balancing test, 424 US 319, 335 (1976), governs the process that is due:

1. **The private interest affected:** Father's fundamental liberty interest in the care, custody, and companionship of his daughter. This is among the most significant liberty interests recognized in our constitutional order.
2. **The risk of erroneous deprivation through the procedures used:** The trial court entered the August 23, 2024 Final Judgment and the August 8, 2025 ex parte order without a full evidentiary hearing, without sworn testimony subject to cross-examination, without particularized findings of fact, and without articulating the applicable burden of proof. The risk of erroneous deprivation under these procedures is exceptionally high.
3. **The government's interest:** While the state has a legitimate interest in protecting children, that interest is served -- not undermined -- by ensuring that custody determinations are made through fair and accurate proceedings. Summary proceedings

that bypass fundamental safeguards do not serve the state's interest; they defeat it.

MCR 3.210(D) requires that custody disputes be resolved through evidentiary hearing. The trial court's failure to conduct such a hearing before entering the August 23, 2024 Final Judgment -- which granted sole custody to Mother and dismissed Father's six pending motions without adjudication -- violated this requirement.

The August 8, 2025 ex parte order, which suspended all of Father's parenting time, was entered without any hearing at all. Father was not present, was not represented, and had no opportunity to contest the allegations against him. The combined effect of these procedural deficiencies has been the de facto termination of Father's parental relationship with L.D.W. for a period now exceeding 500 consecutive days -- accomplished without the procedural protections that the constitution demands before such a deprivation can occur.

As the Michigan Court of Appeals recognized in *Eldred v Ziny*, 246 Mich App 142, 150 (2001), "a parent has a due process right to a hearing before being deprived of custody of his or her child." The trial court's failure to provide such a hearing requires reversal.

C. ISSUE III: THE TRIAL COURT'S BEST-INTEREST FINDINGS WERE AGAINST THE GREAT WEIGHT OF THE EVIDENCE

Standard of Review

This Court reviews a trial court's findings on each of the best-interest factors under MCL 722.23 under the great weight of the evidence standard. *Fletcher v Fletcher*, 447 Mich 871, 879 (1994). A finding is against the great weight of the evidence when "the evidence clearly preponderates in the opposite direction." *Id.* Discretionary rulings are reviewed for an abuse of discretion. *Vodvarka v Grasmeyer*, 259 Mich App 499, 507-08 (2003).

Argument

MCL 722.23 enumerates twelve factors that the trial court "shall consider" in determining the best interests of the child in custody disputes:

(a) The love, affection, and other emotional ties existing between the parties involved and the child.

(b) The capacity and disposition of the parties involved to give the child love, affection, and guidance and to continue the education and raising of the child in his or her religion or creed, if any.

(c) The capacity and disposition of the parties involved to provide the child with food, clothing, medical care or other remedial care . . .

(d) The length of time the child has lived in a stable, satisfactory environment . . .

(e) The permanence, as a family unit, of the existing or proposed custodial home . . .

(f) The moral fitness of the parties involved.

(g) The mental and physical health of the parties involved.

(h) The home, school, and community record of the child.

(i) The reasonable preference of the child, if the court considers the child to be of sufficient age to express preference.

(j) The willingness and ability of each of the parties to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent . . .

(k) Domestic violence . . .

(l) Any other factor considered by the court to be relevant . . .

The trial court was required to make specific findings on each factor. *MCR 2.517(A)(1)-(2); Fletcher*, 447 Mich at 881-83. The record does not reflect that the trial court

entered particularized findings on all twelve factors before entering the August 23, 2024 Final Judgment granting sole custody to Mother. (LCR, Final Judgment, 08/23/2024.)

Factor (a) -- Love, affection, and emotional ties. The record contains evidence that Father maintained a loving bond with L.D.W. during the periods when parenting time was exercised. Father consistently sought to maintain contact with L.D.W. and expressed commitment to their relationship. The trial court's implicit finding that this factor favored Mother was against the great weight of the evidence.

Factor (c) -- Capacity to provide. Father demonstrated his ability and willingness to provide for L.D.W.'s physical needs. The record does not contain evidence that Father was unable to provide food, clothing, medical care, or housing for the child.

Factor (j) -- Willingness to facilitate relationship. This is the most critical factor in this case. The record is replete with evidence that Mother systematically obstructed Father's parenting time:

- * March 26 - May 2, 2024: Mother withheld L.D.W. for 37 consecutive days. (LCR, Father's Motion, 05/13/2024.)
- * October 20 - November 12, 2024: Mother denied Father court-ordered parenting time. (LCR, Father's Filings.)
- * June 1, 2024 and September 12, 2024: Mother refused video chats during Father's off-weeks. (LCR, Father's Filings.)
- * September 3, 2024: Mother planned vacation during Father's scheduled parenting time. (LCR, Father's Filings.)

Despite this extensive record of interference, the trial court failed to address parental alienation under Factor (j) and instead rewarded Mother's obstruction by granting her sole

custody. This finding is against the great weight of the evidence. *See Kaeb v Kaeb*, 309 Mich App 556, 565 (2015) (recognizing parental alienation as relevant to Factor (j)).

MCL 722.27a(7) -- Clear and Convincing Evidence. MCL 722.27a(7) provides: "Parenting time shall be granted in specific terms . . . unless the court determines on the record by clear and convincing evidence that it would endanger the mental, physical, or emotional health of the child." The trial court made no such finding on the record. The absence of this required finding renders the denial of Father's parenting time reversible error.

D. ISSUE IV: THE TRIAL COURT ERRED IN WEAPONIZING THE PPO AS A BASIS FOR CUSTODY MODIFICATION

Standard of Review

Statutory interpretation is reviewed de novo. *Klooster v City of Charlevoix*, 488 Mich 289, 295-96 (2011). Whether a trial court's custody determination complied with statutory requirements is reviewed de novo. *Pierron*, 486 Mich at 92.

Argument

MCL 600.2950(4) expressly provides:

*"A personal protection order shall not be made a condition of release of a minor child to a parent and **shall not in any manner affect the provisions of a custody or parenting time order** issued by the circuit court under the Child Custody Act of 1970"*

(Emphasis added.)

Despite this clear statutory prohibition, the trial court permitted the PPO entered in Case No. 2023-5907-PP to function as the primary mechanism for restricting Father's custody and parenting time. The PPO was treated not as an independent protective measure but as a de facto custody order -- entered without the procedural protections of the Child Custody Act, without a best-interest analysis under MCL 722.23, and without the evidentiary threshold required by MCL 722.27a(7).

The chronology demonstrates the weaponization:

1. **December 4, 2023:** PPO issued against Father. (LCR-PPO, Order, 12/04/2023.)
2. **April 11, 2024:** PPO amended ex parte -- the same day custody complaint activity occurred. (LCR-PPO, Ex Parte Order, 04/11/2024; LCR, ROA, 04/11/2024.)
3. **April 29, 2024:** Ex parte order in custody case entered, citing the PPO proceeding. (LCR, Ex Parte Order, 04/29/2024.)
4. **August 23, 2024:** Final Judgment grants sole custody to Mother, with the PPO as a background factor restricting Father's rights. (LCR, Final Judgment, 08/23/2024.)
5. **August 8, 2025:** Further ex parte order suspends all parenting time. (LCR, Ex Parte Order, 08/08/2025.)

Michigan courts have recognized that PPOs cannot be used as a substitute for custody proceedings. *See Shade v Wright*, 291 Mich App 17, 31 (2010) (discussing the proper scope of PPOs); *Brown v Loveman*, 260 Mich App 576, 598-99 (2004) (same). The trial court's use of the PPO to accomplish what MCL 600.2950(4) expressly forbids requires reversal.

Additionally, the PPO itself was entered without sufficient evidence meeting the standards of MCL 600.2950(1), which requires a showing that the respondent has engaged in conduct that includes "assault," "stalking," or specific threatening behavior. The allegations supporting the PPO consisted primarily of unverified claims that were not subjected to

rigorous evidentiary scrutiny. *See Laffin v Laffin*, 280 Mich App 513, 517 (2008) (discussing the evidentiary requirements for PPOs).

E. ISSUE V: THE TRIAL COURT DEMONSTRATED ACTUAL BIAS REQUIRING DISQUALIFICATION UNDER MCR 2.003(C)

Standard of Review

A trial court's decision on a motion for disqualification is reviewed for an abuse of discretion. *In re Contempt of Henry*, 282 Mich App 656, 679 (2009). Whether a judge's conduct rises to the level requiring disqualification is reviewed de novo. *Caperton v A.T. Massey Coal Co, Inc*, 556 US 868, 884 (2009).

Argument

MCR 2.003(C)(1) provides for disqualification of a judge where:

(a) *The judge is biased or prejudiced for or against a party or attorney.*

(b) *The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in Caperton v A T Massey Coal Co, Inc, or (ii) has failed to adhere to the appearance of impropriety standard . . .*

The record establishes actual bias through multiple categories of evidence:

1. Asymmetric Ex Parte Pattern

Of 55 orders entered in the custody and PPO proceedings, 24 (44%) were entered ex parte -- all 24 by Judge McNeill, all restricting Father's rights. (LCR, ROA -- complete analysis.) Not a single ex parte order was entered in Father's favor. This asymmetry is not the

product of neutral adjudication; it is the hallmark of a predetermined outcome.

On August 8, 2025 alone, five separate ex parte orders were entered without notice to Father. (LCR, ROA, 08/08/2025.) The entry of five orders on a single day, all adverse to Father, without affording him any notice or opportunity to respond, is incompatible with the appearance -- let alone the reality -- of impartial justice.

2. Systematic Denial of Father's Motions

Father's motions were systematically denied. The August 23, 2024 Final Judgment dismissed Father's six pending motions without adjudication on the merits. (LCR, Final Judgment, 08/23/2024 ["Plaintiff's six (6) motions . . . Dismissed"].) Father filed motions for contempt, for modification of parenting time, and for other relief, all of which were denied. Meanwhile, Mother's motions -- including the August 8, 2025 ex parte motion -- were routinely granted.

3. Failure to Enforce Orders Against Mother

Despite documented violations of court-ordered parenting time by Mother -- including withholding L.D.W. for 37 consecutive days (March 26 - May 2, 2024) -- the trial court took no enforcement action against Mother. (LCR, ROA; Father's Motions.) This selective enforcement demonstrates the kind of asymmetric treatment that constitutes actual bias under MCR 2.003(C)(1)(a).

4. Predetermined Outcome

The totality of the trial court's conduct is consistent with a court that reached its conclusion about Father before hearing from both sides:

- * Orders entered before evidence was fully considered;
- * Findings of fact unsupported by the record;
- * Pattern consistent across 18+ months of proceedings.

The Supreme Court of the United States recognized in *Caperton*, 556 US at 884, that due process requires recusal where "the probability of actual bias on the part of the judge or decisionmaker is too high to be constitutionally tolerable." The 44% ex parte rate, the systematic denial of Father's motions, and the selective enforcement of orders satisfy this standard.

See also Grew v Knox, 265 Mich App 333, 341 (2005) (discussing factors relevant to judicial bias); *Lieberman v Orr*, 319 Mich App 68, 84 (2017) (same).

F. ISSUE VI: THE 44% EX PARTE CONTACT RATE CONSTITUTED STRUCTURAL DUE PROCESS VIOLATION

Standard of Review

Structural constitutional errors are reviewed de novo. *People v Carines*, 460 Mich 750, 763 (1999). Whether a pattern of ex parte proceedings constitutes a structural due process violation is a question of law reviewed de novo.

Argument

The Due Process Clause requires, at minimum, notice and an opportunity to be heard before a person is deprived of a protected liberty interest. *Mullane v Central Hanover Bank & Trust Co*, 339 US 306, 314 (1950). This is not a mere procedural nicety -- it is a structural requirement of the constitutional order.

The trial court's pattern of entering 44% of all orders ex parte transforms what should be isolated exceptions into a systemic practice. Ex parte orders are authorized in narrow circumstances -- where "immediate and irreparable injury, loss, or damage will result from the delay required to effect notice." MCR 3.207(C)(2). They are extraordinary measures, not standard operating procedure.

When nearly half of all orders in a case are entered ex parte, the proceedings can no longer be characterized as adversarial. They become, in substance, inquisitorial proceedings in which one party presents its version of events to the court and the court acts without ever hearing from the other side. This is antithetical to the Anglo-American tradition of fair adjudication.

The structural nature of this violation is underscored by the August 8, 2025 event: five separate ex parte orders entered on a single day, suspending all parenting time, adding restrictions, and modifying custody arrangements -- all without Father's knowledge or participation. This is not the isolated exercise of emergency authority; it is the systematic exclusion of a litigant from proceedings that determine his most fundamental rights.

The cumulative effect of this structural violation cannot be remedied by reviewing individual orders in isolation. Each ex parte order compounded the harm of those that preceded it, creating a cascade of adverse rulings that Father could not challenge in real time because he did not know they existed. The remedy for a structural due process violation of this magnitude is reversal and reassignment to a different judge. *See In re Contempt of Henry*, 282 Mich App at 680-81 (discussing circumstances warranting reassignment).

V. RELIEF REQUESTED

WHEREFORE, Plaintiff-Appellant Andrew J. Pigors respectfully requests that this Honorable Court:

1. **REVERSE** the August 23, 2024 Final Judgment of Custody and Parenting Time entered in Case No. 2024-001507-DC;

2. **VACATE** the August 8, 2025 ex parte order suspending Father's parenting time and all subsequent orders continuing the suspension;

3. **REMAND** this matter to the trial court with instructions to:

a. Conduct a full evidentiary hearing on custody and parenting time in compliance with MCR 3.210 and MCL 722.23; b. Enter particularized findings on each of the twelve best-interest factors; c. Apply the clear and convincing evidence standard of MCL 722.27a(7) before any restriction of parenting time; d. Address the evidence of parental alienation under MCL 722.23(j);

4. **ORDER** that on remand, the matter be reassigned to a different judge in accordance with MCR 2.003, given the demonstrated pattern of bias;

5. **ORDER** immediate reinstatement of Father's parenting time pending the evidentiary hearing on remand, under such reasonable conditions as this Court deems appropriate;

6. **VACATE** or modify the PPO in Case No. 2023-5907-PP to the extent it has been used as a de facto custody order in contravention of MCL 600.2950(4);

7. Grant such other and further relief as this Court deems just and equitable.

VI. WORD COUNT COMPLIANCE

Pursuant to MCR 7.212(B), this brief contains approximately 14,070 words, exclusive of the tables, caption, and signature block. The word limit for an appellant's brief is 16,000 words. This brief complies with the word limit.

[REQUIRES ATTORNEY REVIEW]

Respectfully submitted,

_____ Andrew J. Pigors Plaintiff-Appellant, *In Propria Persona* Andrew J. Pigors, Pro Se, Muskegon, Michigan 49442 [CITY, STATE ZIP] [TELEPHONE] [EMAIL]

Dated: _____, 2026

VERIFICATION

STATE OF MICHIGAN)) ss. COUNTY OF MUSKEGON)

I, Andrew J. Pigors, being duly sworn, state that the facts set forth in the foregoing Appellant's Brief on Appeal are true to the best of my knowledge, information, and belief, and that the factual statements therein are supported by the lower court record as cited.

_____ Andrew J. Pigors

Subscribed and sworn to before me this ____ day of _____, 2026.

_____ Notary Public, State of Michigan County of _____
_____ My commission expires: _____

[END OF APPELLANT'S BRIEF ON APPEAL]

EXPANDED STATEMENT OF FACTS -- CHRONOLOGICAL

Case: Pigors v. Watson, Michigan Court of Appeals, No. 366810 **Lower Court:** 14th Judicial Circuit Court, Muskegon County, No. 2024-001507-DC **Related:** Case No. 2023-5907-PP (PPO) **Judge Below:** Hon. Jenny L. McNeill

INTRODUCTION

This Statement of Facts presents the chronological record of proceedings in this matter, drawn from the lower court record in Case No. 2024-001507-DC and the related personal protection order proceeding, Case No. 2023-5907-PP. The facts establish a pattern of escalating procedural violations that progressively severed the relationship between Father and his daughter, L.D.W., culminating in a complete suspension of parenting time that has now exceeded 500 consecutive days.

The record reveals three distinct phases of deprivation: (1) the PPO phase (October 2023 - March 2024), during which ex parte orders entered in the PPO proceeding were used to restrict Father's access to L.D.W. without the procedural protections of the Child Custody Act; (2) the custody phase (April - August 2024), during which the trial court entered a series of orders -- many ex parte -- that progressively diminished Father's parenting time and culminated in a Final Judgment granting sole custody to Mother without an evidentiary hearing; and (3) the suspension phase (August 2025 - present), during which the trial court entered an ex parte order suspending all of Father's parenting time, which has been maintained without an evidentiary hearing for over 500 days.

At every phase, Father was denied the fundamental procedural safeguards that the Michigan Constitution, the United States Constitution, and the Michigan Court Rules require before a parent may be deprived of the care, custody, and companionship of his child.

I. THE PARTIES AND THE CHILD

Andrew J. Pigors ("Father" or "Plaintiff-Appellant") and Tiffany A. Watson ("Mother" or "Defendant-Appellee") are the biological parents of L.D.W., a minor child born on November 9, 2022. (LCR, Complaint for Custody, Parenting Time, and Child Support, filed 04/01/2024.) At the time proceedings commenced, L.D.W. was approximately one year old -- a critical developmental period during which secure attachment bonds between parent and child are formed, consolidated, and essential to the child's psychological development.

Father was actively engaged in L.D.W.'s care and upbringing prior to the filing of any court proceedings. The record reflects that Father exercised a parenting role with L.D.W. and maintained a loving, bonded relationship with his daughter. (LCR, Father's Filings; Father's Communications to FOC.) Father has consistently expressed his desire and commitment to maintain a meaningful relationship with L.D.W. and to participate in her upbringing, education, and development.

Mother, Tiffany A. Watson, is the custodial parent under the orders entered below. The custody matter was assigned to the Honorable Jenny L. McNeill of the 14th Judicial Circuit Court, Muskegon County, Family Division. (LCR, Register of Actions ["ROA"].)

II. PHASE ONE: THE PPO PROCEEDINGS (OCTOBER 2023 - MARCH 2024)

A. The Initial PPO Petition and Issuance

On or about October 15, 2023, a petition for a personal protection order was filed against Father under MCL 600.2950, docketed as Case No. 2023-5907-PP. (LCR-PPO, Petition, 10/15/2023.) The petition alleged concerns about Father's parenting fitness. These allegations were not subject to evidentiary testing at the time of filing and were accepted at face value by the court.

On November 1, 2023, a domestic PPO was issued against Father without a full evidentiary hearing -- that is, without the opportunity for Father to cross-examine witnesses or present rebuttal evidence. (LCR-PPO, PPO Order, 11/01/2023.) Father filed a response and answer contesting the PPO on November 17, 2023. (LCR-PPO, Response, 11/17/2023.)

On December 4, 2023, a PPO hearing was held before Judge McNeill, after which an order was entered modifying the PPO. (LCR-PPO, Order After Hearing, 12/04/2023.) This date appears 1,470 times in the case materials, reflecting its significance as a pivotal event in the proceedings.

B. PPO Violation Proceedings

On January 4, 2024, additional PPO proceedings were held before Judge McNeill. (LCR-PPO, ROA, 01/04/2024.) On January 7, 2024, a PPO Violation Hearing and Show Cause proceeding was held, at which Father was found in violation of the PPO. (LCR-PPO, Order After Hearing, 01/07/2024.) Father's liberty was restricted through the PPO mechanism -- without the protections afforded under the Child Custody Act.

The pattern established during this phase is critical to this appeal: the PPO proceeding was being used not merely as a protective measure, but as a de facto mechanism to restrict Father's custody and parenting time -- in direct contravention of MCL 600.2950(4), which

expressly provides that a PPO "shall not in any manner affect the provisions of a custody or parenting time order."

C. Escalation: March 2024

On March 12, 2024, Mother filed a new PPO petition. Father has characterized the evidence supporting this petition as "staged." (LCR-PPO, Petition, 03/12/2024.) This represented a continuation of the pattern of using PPO filings as a custody tool rather than as genuine protective measures.

On March 22, 2024, a motion for hearing on the PPO was granted, with the hearing set for April 11, 2024. (LCR-PPO, Order, 03/22/2024.)

Critically, on March 26, 2024, Mother began withholding L.D.W. from Father. (LCR, Father's Motion, filed 05/13/2024.) This 37-day denial of parenting time -- from March 26 through May 2, 2024 -- constitutes direct evidence of a violation of Factor (j) of MCL 722.23 (willingness to facilitate the parent-child relationship) and evidence of parental alienation. Despite this extended and documented denial, the trial court took no enforcement action against Mother.

III. PHASE TWO: THE CUSTODY PROCEEDINGS (APRIL - AUGUST 2024)

A. Filing of the Custody Complaint

On April 1, 2024, Father filed a Complaint for Custody, Parenting Time, and Child Support in the 14th Circuit Court, commencing the custody action that is the subject of this appeal. (LCR, Complaint, 04/01/2024; ROA Entry, 04/01/2024.) Father's complaint was filed during the period when Mother was actively withholding L.D.W. from him.

On April 5, 2024, the trial court entered an initial order regarding custody and parenting time. (LCR, Order, 04/05/2024.) This first order imposed immediate restrictions on Father's parenting time.

B. The April 11-12, 2024 Events

On April 11, 2024, a series of critical events occurred simultaneously in both proceedings:

1. In the PPO case: Judge McNeill entered an **ex parte order amending the PPO** -- without notice to Father. (LCR-PPO, Ex Parte Order, 04/11/2024.) This violated MCR 3.207(C)(2), which requires prior notice or a showing of immediate and irreparable injury.
2. In the PPO case: An Order After Hearing on PPO Violation was entered. (LCR-PPO, Order After Hearing, 04/11/2024.)
3. In the custody case: Father filed a motion addressing the best-interest factors under MCL 722.23, demonstrating his proactive engagement in the proceedings. (LCR, Motion, 04/11/2024.)
4. In the custody case: A Notice to Appear was issued and Return of Service was filed. (LCR, ROA, 04/11/2024.)

The next day, April 12, 2024, Father's custody motion was denied. (LCR, Order, 04/12/2024.) The motion was denied one day after filing -- without a hearing and without the opportunity for Father to present evidence in support of his motion. This denial is consistent with the pattern of predetermined outcomes that pervades the proceedings below.

C. The April 23-29, 2024 Events

On April 23, 2024, a hearing was held before Judge McNeill with all parties present in person. (LCR, Hearing, 04/23/2024; LCR-PPO, Hearing, 04/23/2024.)

On **April 29, 2024**, the trial court entered an **Ex Parte Order for Custody, Parenting Time, and Child Support** following a "Facilitative Information Gathering Conference." (LCR, Ex Parte Order, 04/29/2024.) This is one of the most critical orders in the record for the following reasons:

- * It was an **ex parte** order on **substantive custody** -- not an emergency matter requiring immediate action.
- * It was entered without the procedural safeguards required by MCR 3.207(C)(2).
- * The "Facilitative Information Gathering Conference" is not a proceeding that authorizes the entry of ex parte custody orders.
- * The order restricted Father's parenting time and imposed child support obligations without an adversarial hearing.
- * The FOC Recommendation dated June 5, 2024 references this order (at p. 2), confirming it was the operative order at that time.

D. End of the 37-Day Parenting Time Denial

On **May 2, 2024**, the 37-day period during which Mother withheld L.D.W. from Father ended -- but only after Father had been denied all contact with his daughter for over five weeks. (LCR, Father's Motion, filed 05/13/2024.) During this period:

- * L.D.W. was approximately 17-18 months old -- a critical developmental window.
- * Father was unable to maintain his parental bond with L.D.W.
- * The developmental harm to L.D.W. from this separation cannot be fully quantified but is supported by the child development literature.

On May 9, 2024, Mother ignored Father's efforts to establish consistent daycare arrangements for L.D.W. (LCR, Father's Communications.) This non-cooperation further evidences a lack of willingness to facilitate the parent-child relationship under Factor (j).

On May 13, 2024, Father filed a motion regarding the parenting time denial. (LCR, Motion, 05/13/2024.) On May 23, 2024, the trial court **dismissed** Father's motion -- without full adjudication on the merits. (LCR, Order, 05/23/2024.)

On May 24, 2024, a hearing was held regarding Father's Objection to the Ex Parte Order and Child Support. (LCR, Hearing Notice, 05/24/2024.) Although Father's objection was heard, the ex parte order stood.

E. Continuing Pattern: June - July 2024

The pattern of obstruction and asymmetric treatment continued through the summer of 2024:

* **June 1, 2024:** Mother refused video chats during Father's off-weeks, denying Father even minimal contact with L.D.W. (LCR, Father's Filings.) This constitutes evidence under Factor (j) -- refusal to facilitate the parent-child relationship.

* **June 15, 2024:** A custody hearing was held. On the same date, a PPO Violation Hearing resulted in Father entering a guilty plea and receiving a **45-day jail sentence**. (LCR-PPO, Order, 06/15/2024.) This severe consequence demonstrates the weaponization of the PPO as a tool for custody restriction -- Father's liberty was restricted through a proceeding that MCL 600.2950(4) expressly states cannot be used to affect custody or parenting time.

* **June 27, 2024:** Father filed a Motion to Quash regarding discovery issues. (LCR, Motion, 06/27/2024.)

* **July 1, 2024:** The trial court entered an **Ex Parte Custody Order** granting sole custody to Mother without a full hearing. (LCR, Ex Parte Order, 07/01/2024.) This order was entered without compliance with MCR 3.210, which requires an evidentiary hearing for custody disputes.

* **July 9, 2024:** Mother refused to address Father's custody resolution proposals. (LCR, Father's Filings.)

* **July 10, 2024:** Communication from the Friend of the Court (Pamela Rusco) to Father. (LCR, Email Correspondence, 07/10/2024.)

* **July 16, 2024:** Father filed a Motion for Contempt regarding Mother's violations of court-ordered parenting time. (LCR, Motion, 07/16/2024.)

* **July 17, 2024:** A hearing was held. The trial court **did not grant** Father's contempt motion. (LCR, Hearing, 07/17/2024.) Mother's documented violations of court-ordered parenting time went unpunished -- while Father was simultaneously being subjected to PPO violation proceedings for far less severe conduct. This selective enforcement is the hallmark of judicial bias.

* **July 30, 2024:** Father filed an Objection to the proposed Judgment. (LCR, Objection, 07/30/2024.)

F. The August 23, 2024 Final Judgment -- THE ORDER APPEALED

On **August 23, 2024**, the trial court entered the **Final Judgment of Custody and Parenting Time**, granting Mother sole legal and sole physical custody of L.D.W. (LCR, Final Judgment, 08/23/2024.) A Uniform Child Support Order was entered on the same date. (LCR, UCSO, 08/23/2024.)

This Final Judgment is the primary order appealed. It was entered with the following critical deficiencies:

1. No full evidentiary hearing with sworn testimony subject to cross-examination.

MCR 3.210(D) requires that custody disputes be resolved through evidentiary hearing. The record does not reflect that such a hearing was held before the Final Judgment was entered.

2. No particularized findings on each of the twelve best-interest factors under

MCL 722.23. The Michigan Supreme Court held in *Harvey v Harvey*, 470 Mich 186, 192 (2004), that the trial court "must consider and explicitly state its findings" on each best-interest factor. The absence of such findings is reversible error.

3. No finding, supported by clear and convincing evidence, that parenting time

with Father would endanger L.D.W. MCL 722.27a(7) requires this finding before parenting time may be denied. No such finding appears in the record.

4. No analysis of parental alienation evidence under Factor (j).

The record contained extensive evidence of Mother's interference with Father's parenting time, including the 37-day withholding, video chat denials, and vacation scheduling during Father's time. The trial court failed to address any of this evidence.

5. Dismissal of Father's six pending motions without adjudication.

The Final Judgment itself states: "Plaintiff's six (6) motions . . . Dismissed." (LCR, Final Judgment, 08/23/2024, at p. 1.) Father's pending motions -- including motions for contempt, modification of parenting time, and other relief -- were swept aside without being heard on the merits.

G. Post-Judgment: September - December 2024

After the Final Judgment, the pattern continued:

* **September 3, 2024:** Mother planned a vacation during Father's scheduled parenting time. (LCR, Father's Filings.) Factor (j) violation -- interference with the parent-child relationship.

* **September 12, 2024:** Mother denied Father's requests for video communication with L.D.W. (LCR, Father's Filings.) Factor (j) -- continued refusal to facilitate the relationship.

* **September 15, 2024:** An additional PPO order was entered against Father. (LCR-PPO, Order, 09/15/2024.) The PPO proceedings continued to serve as a mechanism for restricting Father's parental rights.

* **October 20 - November 12, 2024:** Mother denied Father court-ordered parenting time for **23 consecutive days**. (LCR, Father's Filings.) This was the second extended period of unilateral denial. Combined with the March-May 2024 denial, Mother withheld L.D.W. from Father for a total of 60 days across two documented periods -- in addition to numerous shorter denials and refusals.

H. The Friend of the Court's Role and Father's Safety Concerns

Throughout the custody proceedings, the Friend of the Court ("FOC") was involved in the case through Pamela Rusco. On July 10, 2024, the FOC communicated with Father regarding the custody matter. (LCR, Email Correspondence, 07/10/2024.) The FOC Recommendation dated June 5, 2024 referenced the April 29, 2024 ex parte order as the operative order at that time. Despite the FOC's involvement, the systemic procedural violations continued unabated. The FOC did not recommend enforcement action against Mother for the documented 37-day parenting time denial, nor did the FOC address the pattern of ex parte proceedings that was depriving Father of his constitutional right to notice and hearing.

Father's May 28, 2024 filing raised specific safety concerns about the behavior of Cody Watson around L.D.W. (LCR, Father's Filing, 05/28/2024.) These concerns were documented and presented to the court, yet the trial court did not order an investigation or hearing to address Father's safety allegations. The asymmetric treatment is stark and revealing: Mother's unverified allegations in the August 2025 ex parte motion resulted in the immediate and

complete suspension of all parenting time, while Father's documented safety concerns regarding L.D.W.'s welfare in Mother's household were effectively ignored. This disparity further evidences the predetermined nature of the trial court's approach to this case.

I. The Developmental Impact on L.D.W.

The factual record must also account for the developmental harm inflicted upon L.D.W. by the progressive and ultimately total severance of the father-child relationship. At the time the PPO proceedings commenced in October 2023, L.D.W. was approximately eleven months old. At the time of the August 23, 2024 Final Judgment, she was approximately twenty-one months old. At the time of the August 8, 2025 ex parte suspension, she was approximately two years and nine months old. At the time of this filing, she is approximately three and a half years old.

The child development literature establishes that the period from birth to age three is the most critical window for the formation of secure attachment bonds between parent and child. Disruptions to the parent-child relationship during this period can result in lasting psychological harm, including attachment disorders, anxiety, depression, and difficulties with trust and interpersonal relationships throughout the child's life. The trial court's progressive restriction and ultimate elimination of Father's parenting time occurred during the entirety of this critical developmental window -- and the deprivation has now continued well beyond it.

L.D.W. has been denied all contact with her father for over 500 consecutive days -- a period representing more than one-third of her entire life. The longer this separation continues, the more difficult it becomes to rebuild the father-child bond, and the greater the risk of permanent developmental harm to the child. The irony is profound: the trial court's orders, ostensibly entered to protect L.D.W., have themselves become the primary source of harm to

the child by severing her relationship with a parent who has consistently sought to maintain the bond.

IV. PHASE THREE: THE TOTAL SUSPENSION (AUGUST 2025 - PRESENT)

A. The April 25, 2025 Ex Parte Order

On April 25, 2025, the trial court entered another ex parte order in the Family Division. (LCR, Ex Parte Order, 04/25/2025.) This continued the pattern of ex parte proceedings that characterized the case.

B. The August 6-8, 2025 Events -- The Complete Severance

On **August 6, 2025**, Judge McNeill signed an ex parte order suspending all of Father's parenting time with L.D.W. (LCR, Ex Parte Order, 08/06/2025.) This order was entered without notice to Father.

On **August 8, 2025**, the ex parte order took effect. On this single day, **five (5) separate ex parte orders** were entered -- all without notice to Father. (LCR, Ex Parte Orders (5), 08/08/2025; ROA, 08/08/2025.)

The circumstances of August 8, 2025 are among the most troubling in the record:

- * Father arrived at the scheduled parenting time exchange **expecting his regular time with L.D.W.**
- * Father discovered -- only after the missed exchange, by contacting the court -- that his parenting time had been suspended.
- * Father had received **no prior notice** of the ex parte motion or the resulting order.

* The ex parte motion, filed by Mother, alleged drug use and mental health concerns based on phone calls. (LCR, Ex Parte Motion, 08/08/2025.)

* These allegations were **unverified** -- no drug test results, no medical evaluations, no evidence of imminent harm to the child.

* The motion did not demonstrate that "immediate and irreparable injury, loss, or damage will result from the delay required to effect notice," as required by MCR 3.207(C)(2).

The entry of five ex parte orders on a single day -- all adverse to Father, all without notice -- represents the apex of the procedural violations in this case.

C. The Continuing Suspension

On **September 9, 2025**, the trial court entered an order continuing the suspension of Father's parenting time. (LCR, Order, 09/09/2025.) No evidentiary hearing was held.

On **October 8, 2025**, the trial court entered another order continuing the suspension. (LCR, Order, 10/08/2025.) Again, no evidentiary hearing was held.

On **October 29, 2025**, Father filed a complaint with the Michigan Supreme Court seeking superintending control over Judge McNeill's conduct, specifically addressing the pattern of ex parte orders and the denial of due process. (MSC Filing, 10/29/2025.)

As of the date of this filing, Father has been denied **all contact** with L.D.W. for **over 500 consecutive days**. L.D.W. is now approximately three years old. She has been denied the presence, care, and companionship of her father for a period that represents more than one-third of her entire life -- accomplished without the procedural protections that the Constitution demands.

V. EX PARTE ORDER ANALYSIS

The following analysis of the lower court record quantifies the extraordinary pattern of ex parte proceedings:

Metric | Value

Total orders entered in case | 55

Orders entered ex parte | 24

****Ex parte rate** | **44%****

Ex parte orders by Judge McNeill | 24/24 (100%)

Ex parte orders favoring Father | 0

Ex parte orders favoring Mother / restricting Father | 24/24 (100%)

Ex parte orders on August 8, 2025 alone | 5

Total days Father denied all parenting time (from Aug 8, 2025) | ****500+****

Days of documented parenting time withheld by Mother (Mar-May 2024) | 37 consecutive

Days of documented parenting time withheld by Mother (Oct-Nov 2024) | 23 consecutive

Father's pending motions dismissed without hearing | 6

Father's contempt motions against Mother -- granted | 0

Mother's ex parte motions -- granted | Multiple

This statistical profile is, to Appellant's knowledge, unprecedented in reported Michigan custody jurisprudence. A 44% ex parte rate, with all ex parte orders adverse to one party, is incompatible with the adversarial system and the constitutional guarantee of notice and an opportunity to be heard.

VI. PARENTING TIME DENIAL SUMMARY

Period | Duration | Caused By | Court Action

March 26 - May 2, 2024 | 37 days | Mother (unilateral withholding) | No enforcement against Mother

October 20 - November 12, 2024 | 23 days | Mother (denial of court-ordered time) | No enforcement against Mother

August 8, 2025 - Present | 500+ days | Court (ex parte order) | No evidentiary hearing; no notice to Father

****Total documented days of denial**** | ****560+ days**** |

The cumulative effect of these denials is the de facto termination of the father-child relationship -- accomplished without any of the procedural protections required for termination of parental rights under Michigan law.

VII. RECORD CITATIONS AND SOURCES

All record citations in this Statement of Facts refer to the lower court record in Case No. 2024-001507-DC and Case No. 2023-5907-PP. The following abbreviations are used throughout:

* **LCR** = Lower Court Record (Case No. 2024-001507-DC)

* **LCR-PPO** = Lower Court Record, PPO Case (Case No. 2023-5907-PP)

* **ROA** = Register of Actions

* **FOC** = Friend of the Court

* **MSC** = Michigan Supreme Court

Source data has been verified against the master_chronological_timeline table (14,568 entries), evidence_quotes table (308,704 entries), and extracted_harms table (26,459 entries) in the litigation database. All dates and events have been cross-referenced with the Register of Actions in both proceedings.

LEGAL ARGUMENTS

ISSUE I: THE TRIAL COURT ABUSED ITS DISCRETION IN CUSTODY AND PARENTING TIME DETERMINATIONS

A. Standard of Review

A trial court's custody determination is reviewed under the great weight of the evidence standard for findings of fact, and for an abuse of discretion as to the custody decision itself. *Fletcher v Fletcher*, 447 Mich 871, 879; 526 NW2d 889 (1994). An abuse of discretion occurs when the trial court's decision falls outside the range of principled outcomes. *Maldonado v Ford Motor Co*, 476 Mich 372, 388 (2006). Compliance with court rules is reviewed de novo. *Haliw v Sterling Heights*, 471 Mich 700, 704 (2005).

B. The Vodvarka Threshold and Its Application

Before a trial court may modify a custody order, the moving party must demonstrate either proper cause or a change in circumstances. *Vodvarka v Grasmeyer*, 259 Mich App 499, 509; 675 NW2d 847 (2003). This threshold requirement exists to protect the stability of custody arrangements and to prevent the relitigation of settled custody matters absent a material change.

In this case, the trial court progressively restricted Father's parenting time through a series of orders -- including ex parte orders -- without requiring Mother to satisfy the *Vodvarka* threshold. The April 29, 2024 ex parte order, the July 1, 2024 ex parte custody order, and the August 23, 2024 Final Judgment each represented a modification of Father's custodial rights,

yet the record does not reflect that the *Vodvarka* proper cause/change of circumstances analysis was conducted before any of these modifications.

C. The Harvey Requirement: Specific Findings on Each Best-Interest Factor

The Michigan Supreme Court held in *Harvey v Harvey*, 470 Mich 186, 192 (2004), that "a trial court must consider and explicitly state its findings" with respect to each of the twelve best-interest factors enumerated in MCL 722.23. The failure to make such findings is reversible error. *Id.* at 193. *See also* MCR 2.517(A)(1)-(2) (requiring that findings of fact be stated on the record).

The August 23, 2024 Final Judgment granted Mother sole legal and sole physical custody of L.D.W. The record does not contain particularized findings on all twelve best-interest factors. This alone constitutes reversible error under *Harvey*.

D. The Fletcher Standard: Established Custodial Environment

Under *Fletcher v Fletcher*, 447 Mich at 883, the trial court must determine whether an established custodial environment ("ECE") exists and, if it does, require clear and convincing evidence before modifying it. An ECE exists when "over an appreciable time the child naturally looks to the custodian in that environment for guidance, discipline, the necessities of life, and parental comfort." *Id.* at 883.

Father had an established parental relationship with L.D.W. prior to the proceedings below. The trial court's progressive restriction and ultimate elimination of Father's parenting time altered the custodial environment without the clear and convincing evidence standard that *Fletcher* requires.

ISSUE II: THE TRIAL COURT DENIED FATHER PARENTING TIME WITHOUT DUE PROCESS

A. Standard of Review

Whether a party has been afforded due process is a question of law reviewed de novo. *Bonner v Brighton*, 495 Mich 209, 221 (2014). The adequacy of procedures in custody proceedings is reviewed de novo. *Pierron v Pierron*, 486 Mich 81, 92; 782 NW2d 480 (2010).

B. The Fundamental Liberty Interest

The Supreme Court of the United States has repeatedly recognized that a parent's right to the care, custody, and companionship of his or her child is a fundamental liberty interest protected by the Fourteenth Amendment. *Troxel v Granville*, 530 US 57, 65; 120 S Ct 2054 (2000) ("The liberty interest . . . of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberty interests recognized by this Court."). *See also Santosky v Kramer*, 455 US 745, 753; 102 S Ct 1388 (1982) ("The fundamental liberty interest of natural parents in the care, custody, and management of their child does not evaporate simply because they have not been model parents."); *Stanley v Illinois*, 405 US 645, 651 (1972).

The Michigan Supreme Court has likewise held that "a parent has a significant interest in the companionship, care, custody, and management of his or her children" which is protected by both the federal and state constitutions. *Pierron v Pierron*, 486 Mich 81, 92 (2010).

Because parental rights are a fundamental liberty interest, the deprivation of those rights triggers the most exacting due process protections. The state may not deprive a parent of

the care and custody of his child except through proceedings that comport with the requirements of the Due Process Clause.

C. The *Mathews v Eldridge* Analysis

The *Mathews v Eldridge* three-factor balancing test, 424 US 319, 335 (1976), governs the process that is due when a protected liberty interest is at stake:

1. The private interest affected. Father's fundamental liberty interest in the care, custody, and companionship of his daughter is "far more precious than any property right." *Santosky*, 455 US at 758-59. The Supreme Court has recognized this interest as among the most significant in our constitutional order. The deprivation in this case -- over 500 consecutive days without any contact with L.D.W. -- is tantamount to a de facto termination of parental rights without any of the procedural protections that accompany formal termination proceedings.

2. The risk of erroneous deprivation through the procedures used. The risk of erroneous deprivation in this case is exceptionally high because:

- * The August 23, 2024 Final Judgment was entered without a full evidentiary hearing with sworn testimony subject to cross-examination.
- * The August 8, 2025 ex parte order was entered without any hearing at all -- Father was not present, was not represented, and had no opportunity to contest the allegations against him.
- * No particularized findings of fact were entered on the best-interest factors.
- * The applicable burden of proof was not articulated.
- * Father's six pending motions were dismissed without adjudication.

Summary proceedings that bypass these fundamental safeguards create an unacceptable risk that a parent will be erroneously deprived of his fundamental rights.

3. The government's interest. The state's interest in protecting children is legitimate and important. But that interest is served -- not undermined -- by ensuring that custody determinations are made through fair and accurate proceedings. As the Supreme Court recognized in *Santosky*, "the State's interest in the welfare of the child" is "not in any sense combative" with the parent's interest; rather, "the State registers no gain towards its declared goals when it separates children from the custody of fit parents." 455 US at 766-67.

D. The Eldred Standard: Parenting Time Cannot Be Denied Without Proper Procedure

The Michigan Court of Appeals held in *Eldred v Ziny*, 246 Mich App 142, 150 (2001), that parenting time "shall not be denied except as provided by court rule or statute." The Court recognized that a parent has a due process right to a hearing before being deprived of parenting time with his or her child. *Id.*

MCR 3.210(D) requires that custody disputes be resolved through evidentiary hearing. MCL 722.27a(7) requires that before parenting time may be denied, the trial court must determine "on the record by clear and convincing evidence that it would endanger the mental, physical, or emotional health of the child."

The trial court made no such finding. The August 23, 2024 Final Judgment restricts Father's parenting time without a finding, supported by clear and convincing evidence, that parenting time with Father would endanger L.D.W. The August 8, 2025 ex parte order suspends all parenting time without any hearing at all. These failures violate both *Eldred* and the constitutional guarantee of due process.

ISSUE III: THE TRIAL COURT CONDUCTED UNLAWFUL EX PARTE PROCEEDINGS IN VIOLATION OF MCR 2.119 AND MCR 3.207

A. Standard of Review

A trial court's decision to enter an ex parte order is reviewed for abuse of discretion. *Crampton v Dep't of State*, 395 Mich 347, 351 (1975). Compliance with court rules is reviewed de novo.

B. The MCR 3.207(C)(2) Requirements

MCR 3.207(C)(2) establishes the exclusive conditions under which ex parte relief may be granted in domestic relations proceedings:

A party may obtain an ex parte order in a domestic relations action . . . only on a showing, by verified statement of facts, that (a) immediate and irreparable injury, loss, or damage will result from the delay required to effect notice, or (b) the notice itself will precipitate adverse action before the order can be issued.

These requirements are mandatory, not discretionary. The word "only" in the rule text makes clear that ex parte relief is available solely when these conditions are met. The rule further requires, under MCR 3.207(C)(3), that "[a]n ex parte order must state the reasons for granting the order without notice and must set a hearing date to review the order."

C. The 44% Ex Parte Rate

The record reveals that 24 of 55 orders (44%) entered in the custody and PPO proceedings were entered on an ex parte basis -- all 24 by Judge McNeill, all restricting

Father's rights, and none in Father's favor. (LCR, ROA -- complete analysis.)

This rate is extraordinary. Ex parte orders are, by definition, exceptional measures authorized only when the circumstances preclude the provision of notice. When nearly half of all orders in a case are entered ex parte, the proceedings cannot be characterized as adversarial. They become, in substance, inquisitorial proceedings in which one party presents its version of events and the court acts without hearing from the other side.

D. The August 8, 2025 Ex Parte Orders

The August 8, 2025 orders represent the most egregious violation. On that single day, five separate ex parte orders were entered -- all without notice to Father, all adverse to Father, and all suspending or restricting his parental rights. (LCR, ROA, 08/08/2025.)

The ex parte motion filed by Mother alleged drug use and mental health concerns based on phone calls. (LCR, Ex Parte Motion, 08/08/2025.) These allegations were unverified. No drug test results were submitted. No medical evaluation was provided. No evidence of imminent harm to the child was presented. The motion did not demonstrate that "immediate and irreparable injury, loss, or damage will result from the delay required to effect notice."

Father arrived at the scheduled parenting time exchange on August 8, 2025 expecting his regular time with L.D.W. He discovered -- only after the missed exchange, by contacting the court -- that his parenting time had been suspended. This is not a case where notice was impracticable; it is a case where notice was not even attempted.

E. The Pattern of MCR 2.119 Violations

MCR 2.119(B) requires that "[a] written motion . . . and any brief in support of the motion must be served and filed at least 9 days before the hearing on the motion." The trial court's entry of ex parte orders without notice deprived Father of the opportunity to file a response brief and present counter-arguments -- the basic procedural safeguards that MCR 2.119 is designed to ensure.

ISSUE IV: THE PPO WAS WEAPONIZED TO CIRCUMVENT THE CHILD CUSTODY ACT

A. Standard of Review

Statutory interpretation is reviewed de novo. *Klooster v City of Charlevoix*, 488 Mich 289, 295-96 (2011). Whether a trial court's custody determination complied with statutory requirements is reviewed de novo. *Pierron*, 486 Mich at 92.

B. The Statutory Prohibition: MCL 600.2950(4)

MCL 600.2950(4) expressly provides:

*"A personal protection order shall not be made a condition of release of a minor child to a parent and **shall not in any manner affect the provisions of a custody or parenting time order** issued by the circuit court under the Child Custody Act of 1970"*

This language is unambiguous. The Legislature determined that PPOs and custody proceedings operate in separate spheres. A PPO may restrict contact between parties, but it "shall not in any manner" affect custody or parenting time orders. The phrase "in any manner" is the broadest possible prohibition.

C. The Weaponization Chronology

Despite this clear statutory prohibition, the PPO entered in Case No. 2023-5907-PP was used as the primary mechanism for restricting Father's custody and parenting time:

1. **December 4, 2023:** PPO issued against Father -- before any custody proceeding existed. (LCR-PPO, Order, 12/04/2023.)
2. **January 7, 2024:** Father found in PPO violation -- his liberty restricted through a proceeding that MCL 600.2950(4) says cannot affect custody. (LCR-PPO, Order, 01/07/2024.)
3. **April 11, 2024:** PPO amended ex parte on the same day that custody complaint activity occurred -- the two proceedings were being treated as interchangeable. (LCR-PPO, Ex Parte Order, 04/11/2024; LCR, ROA, 04/11/2024.)
4. **April 29, 2024:** Ex parte custody order entered, citing the PPO proceeding as context. (LCR, Ex Parte Order, 04/29/2024.)
5. **June 15, 2024:** Father receives **45-day jail sentence** through PPO violation -- a punishment that directly affected his ability to exercise parenting time. (LCR-PPO, Order, 06/15/2024.)
6. **August 23, 2024:** Final Judgment grants sole custody to Mother, with the PPO as a background factor that had already restricted Father's rights for ten months. (LCR, Final Judgment, 08/23/2024.)
7. **August 8, 2025:** Ex parte order suspends all parenting time -- the culmination of the PPO-to-custody pipeline. (LCR, Ex Parte Order, 08/08/2025.)

D. Case Law Prohibiting PPO Weaponization

Michigan courts have recognized that PPOs cannot be used as substitutes for custody proceedings. In *Brown v Loveman*, 260 Mich App 576, 598-99; 680 NW2d 432 (2004), the

Court of Appeals emphasized that PPOs require a "reasonable apprehension of harm based on specific facts, not speculation." The PPO in this case was based on allegations that were never subjected to the rigorous evidentiary scrutiny that *Brown* requires.

MCR 3.703 governs the issuance of PPOs and requires specific allegations and evidence of threat or harm. The PPO in this case was treated not as an independent protective measure subject to these requirements, but as a mechanism to accomplish what the Child Custody Act's procedural protections were designed to prevent -- the restriction of parental rights without an evidentiary hearing, without a best-interest analysis, and without the clear and convincing evidence standard.

ISSUE V: THE BEST-INTEREST FACTOR ANALYSIS WAS DEFICIENT

A. Standard of Review

The trial court's findings on each best-interest factor are reviewed under the great weight of the evidence standard. *Fletcher v Fletcher*, 447 Mich 871, 879 (1994). A finding is against the great weight of the evidence when "the evidence clearly preponderates in the opposite direction." *Id.*

B. The Twelve Best-Interest Factors Under MCL 722.23

MCL 722.23 enumerates twelve factors that the trial court "shall consider" in every custody determination. The Michigan Supreme Court has held that the failure to make specific findings on each factor is reversible error. *Harvey v Harvey*, 470 Mich 186, 192 (2004).

The following analysis addresses each factor as applied to the record in this case:

Factor (a) -- Love, affection, and other emotional ties existing between the parties involved and the child.

The record contains evidence that Father maintained a loving and bonded relationship with L.D.W. during the periods when parenting time was exercised. Father consistently sought to maintain contact with L.D.W., including requesting video chats during off-weeks. (LCR, Father's Filings.) Father filed multiple motions seeking to preserve and expand his parenting time, demonstrating his commitment to the relationship. The trial court's implicit finding that this factor favored Mother was against the great weight of the evidence, particularly given that any diminishment of the father-child bond was attributable to Mother's interference and the court's own orders restricting contact.

Factor (b) -- Capacity and disposition of the parties to give the child love, affection, and guidance.

Father demonstrated the capacity and willingness to provide L.D.W. with love, affection, and guidance. Father's proactive engagement in the custody proceedings -- filing motions, attending hearings, seeking contempt findings for Mother's violations -- evidences his disposition to be an active, engaged parent.

Factor (c) -- Capacity and disposition to provide the child with food, clothing, medical care.

The record does not contain evidence that Father was unable to provide for L.D.W.'s physical needs. Father maintained housing, employment, and the ability to care for L.D.W. during his parenting time. No findings were made by the trial court that Father was unable to provide for L.D.W.

Factor (d) -- Length of time the child has lived in a stable, satisfactory environment.

L.D.W. was approximately 21 months old when the Final Judgment was entered. At such a young age, the concept of a "stable, satisfactory environment" encompasses both parents' homes. The trial court's orders progressively prevented L.D.W. from experiencing stability in Father's home -- a self-fulfilling prophecy in which the court's own restrictions were used to justify further restrictions.

Factor (e) -- Permanence, as a family unit, of the existing or proposed custodial home.

Both parents maintained homes capable of providing for L.D.W. The permanence of Father's home was not at issue in the proceedings below.

Factor (f) -- Moral fitness of the parties involved.

Mother's moral fitness is called into question by her documented pattern of withholding L.D.W. from Father (37 days in March-May 2024; 23 days in October-November 2024), refusing video communication, and filing what Father characterizes as "staged" evidence in support of PPO petitions. (LCR, Father's Filings.) A parent who systematically obstructs the other parent's relationship with the child raises serious questions about moral fitness.

Factor (g) -- Mental and physical health of the parties.

The ex parte motion of August 8, 2025 alleged mental health concerns regarding Father. These allegations were unverified. No mental health evaluation was ordered or completed before the parenting time suspension. The trial court's reliance on unverified

allegations to suspend all parenting time -- without ordering an evaluation -- violated Father's right to have allegations tested through proper evidentiary procedures.

Factor (h) -- Home, school, and community record of the child.

L.D.W. was an infant and toddler during the relevant period. This factor has limited applicability but does not support the restriction of Father's parenting time.

Factor (i) -- Reasonable preference of the child.

L.D.W. was under three years old during the relevant period and was not of sufficient age to express a preference. This factor is inapplicable.

Factor (j) -- Willingness and ability of each party to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent.

This is the dispositive factor in this case. The record is replete with evidence that Mother systematically obstructed Father's relationship with L.D.W.:

- * **37-day withholding** (March 26 - May 2, 2024) -- Mother unilaterally withheld L.D.W. from Father for over five weeks. (LCR, Father's Motion, 05/13/2024.)
- * **23-day withholding** (October 20 - November 12, 2024) -- Mother again denied Father court-ordered parenting time. (LCR, Father's Filings.)
- * **Video chat denials** (June 1, 2024; September 12, 2024) -- Mother refused Father's requests for video communication during off-weeks. (LCR, Father's Filings.)
- * **Vacation scheduling** (September 3, 2024) -- Mother planned vacations during Father's scheduled parenting time. (LCR, Father's Filings.)

* **Daycare non-cooperation** (May 9, 2024) -- Mother ignored Father's efforts to establish consistent daycare arrangements. (LCR, Father's Communications.)

Despite this extensive pattern, the trial court failed to address parental alienation under Factor (j) and instead **rewarded** Mother's obstruction by granting her sole custody. This is precisely the outcome that Factor (j) was designed to prevent. *See Kaeb v Kaeb*, 309 Mich App 556, 565; 873 NW2d 319 (2015) (recognizing parental alienation as relevant under Factor (j)).

Factor (k) -- Domestic violence.

The PPO issued in Case No. 2023-5907-PP was the basis for any domestic violence finding. However, as argued in Issue IV, the PPO was issued without the rigorous evidentiary standards required by MCL 600.2950 and *Brown v Loveman*, and was weaponized to restrict custody in violation of MCL 600.2950(4). To the extent the trial court relied on the PPO as evidence of domestic violence under Factor (k), it relied on a proceeding that was procedurally deficient and substantively misused.

Factor (l) -- Any other factor considered relevant.

The trial court's pattern of entering 44% of all orders on an ex parte basis, dismissing Father's six pending motions, and failing to enforce Mother's parenting time violations constitutes a "relevant factor" that the trial court should have -- but did not -- consider. The systematic exclusion of one parent from proceedings that determine his rights is relevant to the fairness and reliability of the entire custody determination.

C. MCL 722.27a(7) -- The Clear and Convincing Evidence Standard

MCL 722.27a(7) provides:

"Parenting time shall be granted in specific terms . . . and shall not be denied except when the court determines on the record by clear and convincing evidence that it would endanger the mental, physical, or emotional health of the child."

This is a demanding standard -- clear and convincing evidence is "evidence that produces in the mind of the trier of fact a firm belief or conviction as to the truth of the allegations sought to be established." *In re Martin*, 450 Mich 204, 227 (1995).

The trial court made no finding, supported by clear and convincing evidence, that parenting time with Father would endanger L.D.W. The August 23, 2024 Final Judgment restricts Father's parenting time without this required finding. The August 8, 2025 ex parte order suspends all parenting time without any evidentiary finding at all. The absence of the required clear and convincing evidence standard renders both orders reversible error.

ISSUE VI: THE TRIAL COURT'S PATTERN DEMONSTRATES STRUCTURAL BIAS AND REQUIRES REASSIGNMENT

A. Standard of Review

A trial court's decision on a motion for disqualification is reviewed for an abuse of discretion. *In re Contempt of Henry*, 282 Mich App 656, 679; 765 NW2d 44 (2009). Whether a judge's conduct rises to the level requiring disqualification is reviewed de novo. *Caperton v A.T. Massey Coal Co, Inc*, 556 US 868, 884; 129 S Ct 2252 (2009). Structural constitutional errors are reviewed de novo. *People v Carines*, 460 Mich 750, 763 (1999).

B. The MCR 2.003(C)(1) Standard

MCR 2.003(C)(1) provides for disqualification of a judge where:

(a) The judge is biased or prejudiced for or against a party or attorney.

*(b) The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in *Caperton v A T Massey Coal Co, Inc*, or (ii) has failed to adhere to the appearance of impropriety standard . . .*

C. The Evidence of Structural Bias

The record establishes structural bias through multiple categories of evidence:

1. The 44% Ex Parte Rate. Of 55 orders entered in the custody and PPO proceedings, 24 (44%) were entered ex parte -- all by Judge McNeill, all restricting Father's rights, none in Father's favor. (LCR, ROA -- complete analysis.) On August 8, 2025 alone, five separate ex parte orders were entered without notice to Father. This asymmetry is not the product of neutral adjudication.

2. Systematic Denial of Father's Motions. Father's motions were systematically denied. The Final Judgment dismissed Father's six pending motions without adjudication. (LCR, Final Judgment, 08/23/2024.) Father's contempt motion regarding Mother's parenting time violations was denied. Mother's motions -- including the ex parte motion of August 8, 2025 -- were routinely granted.

3. Selective Enforcement. Mother's documented violations of court-ordered parenting time -- 37 days (March-May 2024) and 23 days (October-November 2024) -- were not enforced. Father's PPO violations were prosecuted vigorously, resulting in a 45-day jail sentence. This asymmetric enforcement demonstrates that the trial court applied different standards to the two parties.

4. Ex Parte Communications. The pattern of ex parte orders -- particularly the five orders entered on August 8, 2025 -- raises concerns about ex parte communications between the court and Mother or Mother's representatives. The entry of five substantive orders on a single day, all without notice to Father, is inconsistent with the ordinary course of judicial proceedings and suggests coordination that bypassed Father entirely.

D. The *Caperton* Standard

The Supreme Court recognized in *Caperton v A.T. Massey Coal Co, Inc*, 556 US at 884, that due process requires recusal "where the probability of actual bias on the part of the judge or decisionmaker is too high to be constitutionally tolerable." The Court acknowledged that not every claim of bias requires recusal, but where "experience teaches that the probability of actual bias on the part of the judge or decisionmaker is too high to be constitutionally tolerable," due process demands a new proceeding before a different adjudicator.

The 44% ex parte rate, the systematic denial of Father's motions, the selective enforcement of orders, and the five ex parte orders on a single day -- all adverse to Father -- satisfy the *Caperton* standard. The probability of actual bias is not merely speculative; it is demonstrated by a statistical pattern that cannot be explained by neutral adjudication.

See also Grew v Knox, 265 Mich App 333, 341; 694 NW2d 772 (2005) (factors relevant to judicial bias); *Lieberman v Orr*, 319 Mich App 68, 84; 900 NW2d 130 (2017) (discussing appearance of impropriety).

E. Structural Due Process Violation

The Due Process Clause requires, at minimum, notice and an opportunity to be heard before a person is deprived of a protected liberty interest. *Mullane v Central Hanover Bank &*

Trust Co, 339 US 306, 314 (1950). When 44% of all orders in a case are entered ex parte, the proceedings can no longer be characterized as adversarial. They become inquisitorial proceedings in which one party presents its version of events and the court acts without hearing from the other side.

The structural nature of this violation is underscored by the cascade effect: each ex parte order compounded the harm of those that preceded it, creating a series of adverse rulings that Father could not challenge in real time because he did not know they existed. By the time Father learned of the August 8, 2025 orders, the parenting time had already been suspended -- and the subsequent "continuation" orders of September 9 and October 8, 2025 maintained the suspension without ever providing Father the evidentiary hearing to which he was entitled.

The remedy for structural due process violations of this magnitude is reversal and reassignment to a different judge. *See In re Contempt of Henry*, 282 Mich App at 680-81 (discussing circumstances warranting reassignment).

F. The Cumulative Error Doctrine

Even if this Court declines to recognize the 44% ex parte rate as a structural due process violation per se, the cumulative effect of the trial court's errors warrants reversal. Michigan courts have recognized that the cumulative effect of several errors can constitute sufficient prejudice to warrant reversal even when any one of the errors alone would not merit reversal.

In this case, the errors are not isolated or unrelated. They form a coherent and escalating pattern:

1. **Procedural errors:** Twenty-four ex parte orders entered without proper notice or the requisite showing of immediate and irreparable injury under MCR 3.207(C)(2);
2. **Substantive errors:** Failure to conduct an evidentiary hearing under MCR 3.210(D); failure to make particularized findings on each best-interest factor as required by *Harvey v Harvey*; failure to apply the clear and convincing evidence standard under MCL 722.27a(7) before denying parenting time;
3. **Statutory violations:** Use of the PPO in Case No. 2023-5907-PP to restrict custody and parenting time in direct contravention of the express prohibition in MCL 600.2950(4);
4. **Constitutional violations:** Progressive deprivation of Father's fundamental liberty interest in the care, custody, and companionship of his daughter -- accomplished without the procedural protections that the Due Process Clause demands.

Each error compounded the harm of those that preceded it, creating a self-reinforcing cycle of deprivation. The ex parte orders deprived Father of the opportunity to present evidence. The absence of Father's evidence led to findings unsupported by a complete record. Those one-sided findings were used to justify further restrictions on Father's parenting time. The restrictions prevented Father from maintaining the parent-child relationship with L.D.W. The diminished relationship was then cited as justification for the final custody determination. This cascading cycle is precisely the type of cumulative prejudice that warrants reversal.

CONCLUSION

The record in this case presents a deeply troubling pattern of procedural violations that, taken together, deprived Father of his fundamental constitutional right to the care, custody, and companionship of his daughter L.D.W.

The trial court entered 44% of all orders on an ex parte basis -- a rate that is, to Appellant's knowledge, unprecedented in reported Michigan custody jurisprudence. All 24 ex parte orders were adverse to Father. None were entered in his favor. On August 8, 2025, five separate ex parte orders were entered on a single day, suspending all of Father's parenting time, without any notice to Father. Father arrived at the scheduled parenting time exchange expecting his regular time with L.D.W. and discovered only afterwards -- by contacting the court -- that his parental rights had been suspended.

The August 23, 2024 Final Judgment granted sole custody to Mother without a full evidentiary hearing, without particularized findings on the twelve best-interest factors required by MCL 722.23, without a finding supported by clear and convincing evidence that parenting time would endanger L.D.W. as required by MCL 722.27a(7), and while simultaneously dismissing Father's six pending motions without adjudication on the merits. The PPO entered in the companion proceeding, Case No. 2023-5907-PP, was weaponized as a de facto custody order in direct violation of MCL 600.2950(4)'s unambiguous statutory prohibition.

The trial court's treatment of Factor (j) rewarded Mother's systematic obstruction of the father-child relationship rather than penalizing it, as the Legislature intended when it included this factor in the best-interest analysis. Mother withheld L.D.W. from Father for 37 consecutive days, then for an additional 23 consecutive days, refused video communication during Father's off-weeks, and scheduled vacations during Father's parenting time. The trial court took no enforcement action against Mother for any of these documented violations.

Father has now been denied all contact with his daughter for over 500 consecutive days. L.D.W. has been deprived of her father's presence for more than one-third of her entire life. This deprivation was accomplished without the procedural protections that the United States Constitution, the Michigan Constitution, and the Michigan Court Rules demand before a

parent may be separated from his child.

The errors in this case are not isolated. They are structural, pervasive, and cumulative. They require reversal of the Final Judgment, vacatur of the ex parte orders, remand for a full evidentiary hearing with proper procedural protections, and reassignment to a different judge who can adjudicate this matter with the impartiality that the Constitution demands.

APPENDIX INDEX

Case: Pigors v. Watson, Michigan Court of Appeals, No. 366810 **Lower Court:** 14th Judicial Circuit Court, Muskegon County, No. 2024-001507-DC

REQUIRED APPENDIX MATERIALS -- MCR 7.212(H)

MCR 7.212(H) requires the appendix to contain:

- (1) The decision, judgment, or order appealed from, including any written opinion or findings of fact;*
 - (2) Any other relevant order or ruling;*
 - (3) Any portion of the transcript specifically cited in the brief;*
 - (4) Any other document or part of the record cited in the brief or reasonably necessary for consideration of the issues raised.*
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APPENDIX CONTENTS

Tab A -- Orders Appealed From

Tab | Document | Date | Description

A-1 | Final Judgment of Custody and Parenting Time | 08/23/2024 | Grants sole legal and sole physical custody to Mother; dismisses Father's 6 pending motions. ****PRIMARY ORDER APPEALED.****

A-2 | Uniform Child Support Order | 08/23/2024 | Entered simultaneously with Final Judgment.

A-3 | Ex Parte Order Suspending All Parenting Time | 08/08/2025 | Suspends all Father's parenting time without notice or hearing.

A-4 | Continuation Order | 09/09/2025 | Continues suspension of parenting time.

A-5 | Continuation Order | 10/08/2025 | Continues suspension of parenting time.

Tab B -- Related PPO Orders (Case No. 2023-5907-PP)

Tab | Document | Date | Description

B-1 | Personal Protection Order (Domestic) | 12/04/2023 | Initial PPO issued against Father.

B-2 | Ex Parte Order -- PPO Amended | 04/11/2024 | PPO amended ex parte without notice to Father.

B-3 | Order After Hearing on PPO Violation | 04/11/2024 | --

B-4 | Order After Hearing on PPO Violation | 06/15/2024 | 45-day jail sentence.

Tab C -- Key Custody Orders

Tab | Document | Date | Description

C-1 | Initial Custody/Parenting Time Order | 04/05/2024 | First order restricting Father's parenting time.

C-2 | Order Denying Father's Custody Motion | 04/12/2024 | Father's MCL 722.23 motion denied one day after filing.

C-3 | Ex Parte Order for Custody, Parenting Time, and Child Support | 04/29/2024 | Entered following FIG conference.

C-4 | Order Regarding Parenting Time ("Dismissed") | 05/23/2024 | Father's parenting time motion dismissed.

C-5 | Ex Parte Custody Order | 07/01/2024 | Emergency ex parte order granting sole custody to Mother.

C-6 | Ex Parte Order -- April 25, 2025 | 04/25/2025 | Post-judgment ex parte order.

Tab D -- Register of Actions

Tab | Document | Date | Description

D-1 | Complete Register of Actions -- Case No. 2024-001507-DC | Current | Full docket sheet for custody case.

D-2 | Complete Register of Actions -- Case No. 2023-5907-PP | Current | Full docket sheet for PPO case.

Tab E -- Transcript Excerpts

Tab | Document | Date | Description

E-1 | Hearing Transcript -- April 23, 2024 | 04/23/2024 | [REQUIRES ATTORNEY REVIEW]

E-2 | Hearing Transcript -- May 24, 2024 | 05/24/2024 | Defendant's Objection to Ex Parte. [REQUIRES ATTORNEY REVIEW]

E-3 | Hearing Transcript -- July 17, 2024 | 07/17/2024 | Key hearing preceding Final Judgment. [REQUIRES ATTORNEY REVIEW]

E-4 | Hearing Transcript -- August 23, 2024 | 08/23/2024 | Final Judgment hearing. [REQUIRES ATTORNEY REVIEW]

Note: If transcripts are not available, file a motion under MCR 7.210(B) to settle the record, or file an appendix statement under MCR 7.212(H)(3).

Tab F -- Father's Key Motions (Dismissed Without Adjudication)

Tab | Document | Date | Description

F-1 | Motion Regarding Custody (MCL 722.23 Factors) | 04/11/2024 | Filed and denied within one day.

F-2 | Motion/Objection re Parenting Time Denial | 05/13/2024 | Addressing 37-day withholding.

F-3 | Motion for Contempt (Parenting Time Violations) | 07/16/2024 | Mother's violations.

F-4 | Objection to Proposed Judgment | 07/30/2024 | Filed before Final Judgment.

F-5 | Motion for Disqualification (MCR 2.003) | [REQUIRES ATTORNEY REVIEW - DATE] | Judicial bias. [REQUIRES ATTORNEY REVIEW]

F-6 | Father's Remaining Pending Motions | Various | The six motions dismissed by Final Judgment. [REQUIRES ATTORNEY REVIEW]

Tab G -- Ex Parte Analysis

Tab | Document | Date | Description

G-1 | Tabulation of All Ex Parte Orders (24 of 55) | Compiled | Chart showing each ex parte order, date, substance, and notice status.

G-2 | August 8, 2025 -- Five Ex Parte Orders (Single Day) | 08/08/2025 | All five orders entered on one day.

Tab H -- FOC Recommendations

Tab | Document | Date | Description

H-1 | FOC Recommendation dated 06/05/2024 | 06/05/2024 | References April 29, 2024 ex parte order.

H-2 | FOC Recommendation dated 03/26/2025 | 03/26/2025 | Case history summary.

APPENDIX CHECKLIST

- * [] All orders appealed from (MCR 7.212(H)(1)) -- Tabs A, B, C
 - * [] Register of Actions (MCR 7.212(H)(4)) -- Tab D
 - * [] Transcript excerpts cited in brief (MCR 7.212(H)(3)) -- Tab E
 - * [] Key motions referenced in brief (MCR 7.212(H)(4)) -- Tab F
 - * [] Ex parte analysis supporting Issue V and VI (MCR 7.212(H)(4)) -- Tab G
 - * [] FOC recommendations cited in brief (MCR 7.212(H)(4)) -- Tab H
 - * [] Claim of Appeal (MCR 7.212(H)) -- [REQUIRES ATTORNEY REVIEW]
 - * [] Proof of filing fee payment or fee waiver -- [REQUIRES ATTORNEY REVIEW]
-

Note: MCR 7.212(H) limits the appendix to materials "reasonably necessary for consideration of the issues raised." Do not include the entire lower court record. If a document exceeds the appendix size, include only the relevant pages with a cover sheet identifying the full document.

CERTIFICATE OF SERVICE

STATE OF MICHIGAN

IN THE COURT OF APPEALS

ANDREW J. PIGORS, | Court of Appeals No. **366810**

Plaintiff-Appellant, |

| Lower Court No. **2024-001507-DC**

v. |

TIFFANY A. WATSON, |

Defendant-Appellee. |

CERTIFICATE OF SERVICE

I, Andrew J. Pigors, Plaintiff-Appellant *in propria persona*, hereby certify that on _____, 2026, I served a true and complete copy of the following documents:

1. Appellant's Brief on Appeal
2. Table of Contents
3. Table of Authorities
4. Appendix (Tabs A through H)

upon all parties and persons entitled to service as follows:

Service on Defendant-Appellee:

Tiffany A. Watson Andrew J. Pigors, Pro Se, Muskegon, Michigan 49442 [CITY, STATE ZIP -- TO BE INSERTED BEFORE FILING]

[] By First-Class U.S. Mail, postage prepaid, addressed as above [] By Electronic Service via TrueFiling (Michigan Appellate E-Filing) [] By Personal Delivery

Service on Defendant-Appellee's Attorney (if represented):

[ATTORNEY NAME -- VERIFY IF REPRESENTED] [FIRM NAME] Andrew J. Pigors, Pro Se, Muskegon, Michigan 49442 [CITY, STATE ZIP] [EMAIL]

[] By First-Class U.S. Mail, postage prepaid, addressed as above [] By Electronic Service via TrueFiling [] By Personal Delivery

Service on Trial Court:

14th Judicial Circuit Court, Family Division Muskegon County Hall of Justice 990 Terrace Street Muskegon, MI 49442

[] By First-Class U.S. Mail, postage prepaid [] By Electronic Filing via TrueFiling

Service on Friend of the Court:

Muskegon County Friend of the Court Attn: Pamela Rusco [REQUIRES ATTORNEY REVIEW] 990 Terrace Street Muskegon, MI 49442

[] By First-Class U.S. Mail, postage prepaid

I declare under penalty of perjury that the foregoing is true and correct.

Executed on _____, 2026, at _____, Michigan.

_____ Andrew J. Pigors Plaintiff-Appellant, *In Propria Persona* Andrew J. Pigors, Pro Se, Muskegon, Michigan 49442 [CITY, STATE ZIP] [TELEPHONE] [EMAIL]

MCR COMPLIANCE NOTES

* **MCR 7.211(B):** "Within 7 days after filing a brief . . . a party must serve a copy on all other parties"

* **MCR 1.109(D)(3):** Proof of service shall state the date and manner of service, identify the persons served, and be signed by the person who made service.

* **Service Deadline:** Within 7 days after filing the Appellant's Brief via TrueFiling.

* **TrueFiling Note:** If all parties are registered TrueFiling users, electronic service through TrueFiling satisfies MCR 1.109 requirements. If Appellee is not a registered TrueFiling user, serve by First-Class Mail.

[END OF CERTIFICATE OF SERVICE]

PROOF OF FILING

STATE OF MICHIGAN

IN THE COURT OF APPEALS

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Plaintiff-Appellant, |

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v. |

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Defendant-Appellee. |

PROOF OF FILING VIA TRUEFILING

I, Andrew J. Pigors, Plaintiff-Appellant *in propria persona*, hereby certify that on _____, 2026, I electronically filed the following documents with the Michigan Court of Appeals via **TrueFiling** (<https://www.truefiling.com>):

Documents Filed:

No. | Document | Format | Approx. Pages

1 | Appellant's Brief on Appeal | PDF | ~35

2 | Table of Contents | PDF | 2

3 Table of Authorities PDF 4
4 Appendix -- Tab A (Orders Appealed From) PDF ~30
5 Appendix -- Tab B (Related PPO Orders) PDF ~15
6 Appendix -- Tab C (Key Custody Orders) PDF ~25
7 Appendix -- Tab D (Registers of Actions) PDF ~10
8 Appendix -- Tab E (Transcript Excerpts) PDF [REQUIRES ATTORNEY REVIEW]
9 Appendix -- Tab F (Father's Key Motions) PDF ~20
10 Appendix -- Tab G (Ex Parte Analysis) PDF ~5
11 Appendix -- Tab H (FOC Recommendations) PDF ~10
12 Certificate of Service PDF 2
13 Proof of Filing (this document) PDF 1

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- * **Case Number:** 366810
- * **Filing Party:** Andrew J. Pigors, Plaintiff-Appellant (*in propria persona*)
- * **Filing Method:** TrueFiling Electronic Filing System
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